



CERTAMARIS LEGAL DOCUMENT SYSTEM

Business Terms of Service

B2B terms governing access to and use of the CertaMaris platform and services.

DOCUMENT ID

CM-LEGAL-02

VERSION

1.0

ISSUE DATE

23 August 2026

STATUS

FINAL PUBLIC LEGAL NOTICE

DOCUMENT OWNER

Legal / Commercial

APPROVER

Executive Management

DOCUMENT PURPOSE / KEY MESSAGE

Provides the baseline B2B contractual terms for CertaMaris software subscriptions, professional services, authorized users, customer data, confidentiality, risk allocation and termination.

EFFECTIVE

23 August 2026

CLASSIFICATION

PUBLIC CONTRACT TERMS

LEGAL STATUS

Purpose, Scope and Controlled Use

B2B terms governing access to and use of the CertaMaris platform and services.

This is the controlled v1.0 CertaMaris public legal document. It is based on verified CertaMaris product, security, provider and operating facts available for this release. Customer-specific contracting-entity and execution particulars are intentionally handled in Order Forms or signature blocks rather than invented in a public notice.

CertaMaris standing facts used by this document

- Service model: negotiated business-to-business contracts; no consumer or self-service signup model is assumed by these documents
- Platform: browser-based B2B maritime cybersecurity, compliance, assurance, risk-intelligence and operational-resilience SaaS platform
- Customer owns Customer Content; CertaMaris receives only rights needed to provide, secure and support the Services.
- High-sensitivity cyber posture and vessel/facility technical content is treated as Customer Confidential Information.
- Security reporting: security@certamaris.com
- Procurement/legal-document requests: <https://certamaris.com/contact?intent=procurement>

TERMS / NOTICE

Operative Provisions

CertaMaris-specific standing content for this controlled release.

1. Contract Structure

These Business Terms govern negotiated B2B access when incorporated into an Order Form. The Order Form identifies the customer, CertaMaris contracting entity, subscription scope, fees, term and negotiated deviations. Order Form terms control for transaction-specific matters; the DPA controls personal-data processing; a signed SLA controls service-level matters.

2. Authorized Users and License

CertaMaris grants a limited, non-exclusive, non-transferable, non-sublicensable right during the subscription term for authorized business users to access and use the Services within purchased organization, fleet, vessel, facility, module and user scope. No consumer license, source-code license or ownership right is granted.

3. Customer Responsibilities

Customer is responsible for lawful Customer Content, accurate scope/evidence, user authorization, credentials/endpoints, customer-controlled integrations, implementation of corrective actions and operational decisions. CertaMaris does not replace class, flag, port-state, legal, engineering, vessel navigation, emergency-response or other competent authority.

4. Acceptable Use

Customer must follow the Acceptable Use Policy and must not facilitate unauthorized access, malware, unlawful intrusion, abusive scanning, credential sharing, bypass of tenant isolation or security controls, unsafe automation, infringing use, or use as the sole basis for life-safety/navigation/machinery-control decisions.

5. Customer Data Ownership

Customer owns Customer Content. CertaMaris receives only the processing rights reasonably necessary to provide, secure and support the Services, comply with documented instructions and law, and create non-identifying operational improvements that do not disclose Customer Confidential Information.

6. CertaMaris IP

CertaMaris retains its platform, source code, APIs, documentation, control mappings, methodology, templates, Cyber Resilience Twin framework, generalized know-how and improvements. Feedback may be used without identifying the customer or disclosing Customer Confidential Information.

7. Confidentiality

Confidentiality duties continue for five years after disclosure or termination; trade secrets remain protected for so long as they qualify as trade secrets under applicable law. Customer cyber plans, vulnerability findings, inventories, network-zone maps, remote-access pathways and security posture are expressly treated as Customer Confidential Information. CertaMaris non-public architecture, security materials, methodology and commercial terms are CertaMaris Confidential Information.

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8. Security and DPA

CertaMaris maintains reasonable safeguards as described in the Security Addendum/Trust materials and processes Customer Personal Data under the DPA. No SOC 2/ISO certification, universal MFA/SSO, or public RTO/RPO guarantee is incorporated unless separately stated in a signed document.

9. AI and Third-Party Services

AI functionality, when enabled, follows CertaMaris's classification policy using AWS Bedrock as primary and Azure OpenAI as fallback. RESTRICTED data is not sent to external AI. Customer remains responsible for reviewing AI-assisted outputs. Third-party integrations are enabled only within contracted implementation scope.

10. Fees, Taxes and Payment

Invoices are due Net 30 unless the applicable Order Form states otherwise. Overdue undisputed amounts may accrue a late charge at the lesser of 1.5% per month or the maximum rate permitted by law. Billing frequency and fees are in the Order Form. Customer pays applicable transaction taxes except taxes on CertaMaris net income, subject to valid exemption documentation.

11. Support and Availability

No public uptime or service-credit guarantee applies unless a signed Order Form or SLA expressly provides one. CertaMaris will use commercially reasonable efforts to operate the Services reliably.

12. Warranties and Disclaimers

CertaMaris will perform paid Services professionally and substantially in accordance with Documentation. Otherwise, to the maximum extent permitted by law, Services are provided as available without implied warranties. CertaMaris does not guarantee every cyber issue will be found, every recommendation will be correct for the customer's operational environment, or that use will result in an audit, inspection, class or regulatory pass.

13. Indemnification

CertaMaris provides a standard U.S. IP infringement defense for authorized paid use, subject to control-of-defense and customary exclusions. Customer provides a defense for third-party claims arising from Customer Content, unlawful/unauthorized use, or lack of required rights. The Order Form may modify indemnities.

TERMS / NOTICE

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14. Limitation of Liability

Except for Excluded Claims, each party's aggregate liability is capped at the fees paid or payable under the affected Order Form during the 12 months preceding the event giving rise to the claim. Liability for breach of confidentiality, data-protection/security obligations, and CertaMaris IP indemnification is capped at two times the general liability cap. Payment obligations, fraud, willful misconduct, and liability that cannot lawfully be limited are not subject to the contractual caps to the extent stated in the Agreement. Neither party is liable for indirect, special, incidental, consequential, exemplary or punitive damages or lost profits/revenue/goodwill, except third-party amounts payable under an express indemnity where applicable.

15. Term, Renewal and Termination

Unless an Order Form states otherwise, a subscription renews for successive 12-month periods unless either party gives at least 30 days written notice before the then-current term ends. Material breach cure: 30 days after written notice for a material breach capable of cure. Payment cure: 10 days after written notice for nonpayment of undisputed amounts. Suspension is permitted for material security threats, unlawful use, Acceptable Use violations or qualifying nonpayment, using reasonable efforts to limit impact.

16. Export and Deletion

Customer may export during the term. Standard post-termination export-request window: 30 days after termination or expiration, unless the Order Form states otherwise. unless the Order Form says otherwise. Production data is then removed or rendered inaccessible through the offboarding process, subject to legal holds and required records; backup copies age out through managed rotation.

17. Compliance

Each party complies with laws applicable to its performance, including relevant export controls, sanctions and anti-corruption obligations. CertaMaris does not provide legal advice or issue regulatory/class approval.

18. Governing Law, Venue and Notices

The applicable Order Form controls governing law and venue. If it is silent, the Agreement is governed by the law of the U.S. state in which the CertaMaris contracting entity identified in that Order Form is organized, without regard to conflicts rules, and exclusive venue lies in the state and federal courts located in that jurisdiction. Formal customer-specific notice details are stated in the Order Form. Procurement/legal-document requests can be routed through <https://certamaris.com/contact?intent=procurement> for triage.

19. General

Assignment, force majeure, waiver, severability, entire agreement, survival, electronic signatures and order of precedence operate as stated in the Agreement. Customer publicity is opt-in only unless affirmatively authorized in writing.

DOCUMENT CONTROL

Execution, Publication and Revision Record

Reusable records remain controlled; customer/counterparty signatures are completed only for the actual transaction.

CONTROL FIELD	VALUE
Version	1.0
Issue date	23 August 2026
Status	FINAL PUBLIC LEGAL NOTICE
Effective	23 August 2026
Document owner	Legal / Commercial
Approver / execution authority	Executive Management
Review trigger	Material legal, provider, privacy, security, jurisdiction, service-model or commercial change

Publication record. Intended route: <https://certamaris.com/legal/terms>. The deployed native HTML and downloadable PDF should carry the same v1.0 content and effective date.